



Tennessee Valley Authority, Post Office Box 2000, Decatur, Alabama 35609-2000

April 27, 2017

10 CFR 73.71(a)(4)

ATTN: Document Control Desk
U.S. Nuclear Regulatory Commission
Washington, D.C. 20555-0001

Browns Ferry Nuclear Plant, Units 1, 2, and 3
Renewed Facility Operating License No. DPR-33, DPR-52, and DPR-68
NRC Docket No. 50-259, 50-260, and 50-296

Subject: **Licensee Event Report 50-259/2017-002-00**

The enclosed Licensee Event Report provides details of an unauthorized firearm introduced into the protected area. The Tennessee Valley Authority is submitting this report in accordance with Title 10 of the Code of Federal Regulations 73.71(a)(4) for the reporting of a safeguards event.

There are no new regulatory commitments contained in this letter. Should you have any questions concerning this submittal, please contact M. W. Oliver, Nuclear Site Licensing Manager, at (256) 729-2636.

Respectfully,

A handwritten signature in black ink, appearing to read "S. M. Bono", written over a circular stamp or seal.

S. M. Bono
Site Vice President

Enclosure: Licensee Event Report 50-259/2017-002-00 – Unauthorized Firearm
Introduced into the Protected Area

cc (w/ Enclosure):

NRC Regional Administrator - Region II
NRC Senior Resident Inspector - Browns Ferry Nuclear Plant
NRC Director, Division of Security Policy, Office of Nuclear Security and
Incident Response

ENCLOSURE

**Browns Ferry Nuclear Plant
Unit 1**

Licensee Event Report 50-259/2017-002-00

Unauthorized Firearm Introduced into the Protected Area

See Enclosed

NRC FORM 366 (04-2017)		U.S. NUCLEAR REGULATORY COMMISSION			APPROVED BY OMB: NO. 3150-0104			EXPIRES: 03/31/2020			
		LICENSEE EVENT REPORT (LER)									
1. FACILITY NAME Browns Ferry Nuclear Plant, Unit 1					2. DOCKET NUMBER 05000259			3. PAGE 1 OF 6			
4. TITLE Unauthorized Firearm Introduced into the Protected Area											
5. EVENT DATE			6. LER NUMBER			7. REPORT DATE			8. OTHER FACILITIES INVOLVED		
MONTH	DAY	YEAR	YEAR	SEQUENTIAL NUMBER	REV NO.	MONTH	DAY	YEAR	FACILITY NAME	DOCKET NUMBER	
03	02	2017	2017	- 002	- 00	05	01	2017	Browns Ferry Nuclear, Unit 2	05000260	
									FACILITY NAME	DOCKET NUMBER	
									Browns Ferry Nuclear, Unit 3	05000296	
9. OPERATING MODE		11. THIS REPORT IS SUBMITTED PURSUANT TO THE REQUIREMENTS OF 10 CFR §: (Check all that apply)									
1		☐ 20.2201(b)			☐ 20.2203(a)(3)(i)			☐ 50.73(a)(2)(ii)(A)		☐ 50.73(a)(2)(viii)(A)	
		☐ 20.2201(d)			☐ 20.2203(a)(3)(ii)			☐ 50.73(a)(2)(ii)(B)		☐ 50.73(a)(2)(viii)(B)	
		☐ 20.2203(a)(1)			☐ 20.2203(a)(4)			☐ 50.73(a)(2)(iii)		☐ 50.73(a)(2)(ix)(A)	
		☐ 20.2203(a)(2)(i)			☐ 50.36(c)(1)(i)(A)			☐ 50.73(a)(2)(iv)(A)		☐ 50.73(a)(2)(x)	
100		☐ 20.2203(a)(2)(ii)			☐ 50.36(c)(1)(ii)(A)			☐ 50.73(a)(2)(v)(A)		☒ 73.71(a)(4)	
		☐ 20.2203(a)(2)(iii)			☐ 50.36(c)(2)			☐ 50.73(a)(2)(v)(B)		☐ 73.71(a)(5)	
		☐ 20.2203(a)(2)(iv)			☐ 50.46(a)(3)(ii)			☐ 50.73(a)(2)(v)(C)		☐ 73.77(a)(1)	
		☐ 20.2203(a)(2)(v)			☐ 50.73(a)(2)(i)(A)			☐ 50.73(a)(2)(v)(D)		☐ 73.77(a)(2)(i)	
		☐ 20.2203(a)(2)(vi)			☐ 50.73(a)(2)(i)(B)			☐ 50.73(a)(2)(vii)		☐ 73.77(a)(2)(ii)	
					☐ 50.73(a)(2)(i)(C)			☐ OTHER		Specify in Abstract below or in NRC Form 366A	
12. LICENSEE CONTACT FOR THIS LER											
LICENSEE CONTACT Ryan Coons, Licensing Engineer								TELEPHONE NUMBER (Include Area Code) 256-729-2070			
13. COMPLETE ONE LINE FOR EACH COMPONENT FAILURE DESCRIBED IN THIS REPORT											
CAUSE	SYSTEM	COMPONENT	MANUFACTURER	REPORTABLE TO EPIX	CAUSE	SYSTEM	COMPONENT	MANUFACTURER	REPORTABLE TO EPIX		
N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A		
14. SUPPLEMENTAL REPORT EXPECTED								15. EXPECTED SUBMISSION DATE			
☐ YES (If yes, complete 15. EXPECTED SUBMISSION DATE) ☒ NO								MONTH	DAY	YEAR	
								N/A	N/A	N/A	
ABSTRACT (Limit to 1400 spaces, i.e., approximately 15 single-spaced typewritten lines) On March 2, 2017, an unauthorized firearm was introduced into the protected area (PA) after passing through the search process undetected. This led to the declaration of a Notification of an Unusual Event for a security condition that does not involve a hostile action. This event is reportable due to the actual introduction of a contraband firearm into the PA. Immediate actions include the following: The individual who introduced the firearm was removed from the PA, their badge was disabled, their access was revoked, and their personal vehicle searched for additional contraband. A post-event fitness for duty test was attempted but the individual declined after numerous failed attempts to provide a sample. The Nuclear Security Officers (NSOs) on-duty when the individual entered the PA were disqualified. The Search Lane where the individual entered was closed for Maintenance to inspect its x-ray machine, which was found to be working as designed. Two NSOs are now assigned to each lane's search monitor to view the items being processed through the x-ray machine, and any unidentifiable items are physically searched. A fleet-wide policy of random physical searches of personnel and packages has been implemented. Additionally, over 800 lockers, cubicles, and other areas, were searched for contraband. No other contraband or unauthorized items were found. The cause was determined to be that the training provided to NSOs drove the identification of contraband instead of driving the NSO to conduct a physical search when they cannot positively identify all materials using the x-ray image. The corrective action to prevent recurrence is to revise task practical evaluation training and the Personnel Access Control procedure to include acceptance criteria for performing successful material searches.											

**LICENSEE EVENT REPORT (LER)
CONTINUATION SHEET**

Estimated burden per response to comply with this mandatory collection request: 80 hours. Reported lessons learned are incorporated into the licensing process and fed back to industry. Send comments regarding burden estimate to the Information Services Branch (T-2 F43), U.S. Nuclear Regulatory Commission, Washington, DC 20555-0001, or by e-mail to Infocollects.Resource@nrc.gov, and to the Desk Officer, Office of Information and Regulatory Affairs, NEOB-10202, (3150-0104), Office of Management and Budget, Washington, DC 20503. If a means used to impose an information collection does not display a currently valid OMB control number, the NRC may not conduct or sponsor, and a person is not required to respond to, the information collection.

1. FACILITY NAME	2. DOCKET NUMBER	3. LER NUMBER		
		YEAR	SEQUENTIAL NUMBER	REV NO.
Browns Ferry Nuclear Plant, Unit 1	05000-259	2017	- 002	- 00

NARRATIVE**I. Plant Operating Conditions Before the Event**

At the time of discovery, Browns Ferry Nuclear Plant (BFN), Units 1 and 3, were in Mode 1 at 100 percent power. Unit 2 was in Mode 5 to support a refueling outage.

II. Description of Event**A. Event Summary**

On March 2, 2017, at 1215 Central Standard Time (CST), a firearm was found and confiscated in the protected area (PA). This resulted in an unauthorized firearm in the PA, which led to the declaration of a Notification of an Unusual Event (NOUE) based on Emergency Action Level (EAL) 6.7-U, a security condition that does not involve a hostile action. Required actions for the NOUE were taken in accordance with the stations emergency plan implementing procedures. An unauthorized weapon in the PA is contrary to the requirements of 10 CFR 73.55, the BFN Security plan, and procedure SSI-7.6, Personnel Access Control. The actual introduction of contraband into the PA constitutes a reportable safeguards event, in accordance with NSDP-1, Safeguards Event Reporting Guidelines, and 10 CFR 73.71(a)(4).

The contract employee who introduced the firearm was removed from the PA, their badge was disabled, their access was revoked, and their personal vehicle searched for additional contraband. A post-event fitness for duty (FFD) test was attempted but the individual declined after numerous failed attempts to provide a sample.

B. Status of structures, components, or systems that were inoperable at the start of the event and that contributed to the event

There were no structures, systems, or components whose inoperability contributed to this event.

C. Dates and approximate times of occurrencesDates & Approximate Times

March 2, 2017,
at 0913 CST

Occurrence

An individual processed through the electronic search equipment and gained access to the PA while unintentionally in possession of a firearm.

While processing through, the individual placed their backpack and coat into an x-ray machine bucket. The Nuclear Security Officer (NSO) on duty did not positively identify all items prior to granting PA access, which led to the unauthorized firearm inside the PA.



LICENSEE EVENT REPORT (LER) **CONTINUATION SHEET**

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Dates & Approximate Times

March 2, 2017,
at 1205 CST

March 2, 2017,
at 1215 CST

March 2, 2017,
at 1230 CST

March 2, 2017,
at 1242 CST

March 2, 2017,
at 1253 CST

March 2, 2017,
at 1500 CST

Occurrence

Nuclear Security was notified that an individual was in possession of a firearm.

During a search of the individual's locker, NSOs found and confiscated the firearm. The Shift Manager was notified of the firearm by Nuclear Security at this time.

The Shift Manager declared an NOUE based on EAL 6.7-U.

The Alabama Emergency Management Agency was notified.

The Nuclear Regulatory Commission was notified.

The NOUE was terminated, and the appropriate federal, state, and local agencies were notified.

D. Manufacturer and model number of each component that failed during the event

This event did not involve any equipment failure.

E. Other systems or secondary functions affected

No other systems or secondary functions were affected by this event.

F. Method of discovery of each component or system failure or procedural error

Nuclear security was notified that an individual brought a firearm inside the PA. After searching the individual's locker, a firearm was discovered on March 2, 2017, at 1215 CST.

G. The failure mode, mechanism, and effect of each failed component

This event did not involve an equipment failure.

H. Operator actions

There were no operator actions associated with this event.

**LICENSEE EVENT REPORT (LER)
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Browns Ferry Nuclear Plant, Unit 1	05000-259	2017	- 002	- 00

I. Automatically and manually initiated safety system responses

There were no automatic or manual safety system responses associated with this event.

III. Cause of the event**A. Cause of each component or system failure or personnel error**

The direct cause of this event was determined to be that the NSOs did not positively identify all materials in the x-ray search.

B. Cause(s) and circumstances for each human performance related root cause

The root cause was determined to be that the training provided to the NSOs drove the identification of contraband instead of driving the NSOs to conduct a physical search when the NSO cannot positively identify all materials using the x-ray image.

IV. Analysis of the event

TVA is submitting this event in accordance with Title 10 of the Code of Federal Regulations 73.71(a)(4), due to actual introduction of contraband into the PA. The condition was discovered on March 2, 2017, at 1215 CST, when security found and confiscated the firearm during a search of an individual's locker, after receiving a tip from another employee. The individual, unsure of what to do after discovering they had introduced a firearm into the PA, showed the weapon to two other employees and asked them for advice. As soon as the individual left to return to their duties, the other employees relayed the information through the appropriate chain of command. Failing to detect the unauthorized weapon was an action contrary to the requirements of 10 CFR 73.55, the BFN Security Plan, and procedure SSI-7.6, constituted a reportable safeguards event.

V. Assessment of Safety Consequences

This event did not result in the inoperability or unavailability of any system to provide their required safety functions. This event resulted in a security condition that did not involve a hostile action. Upon learning of the unauthorized firearm in the PA, NSOs quickly secured the site by apprehending the individual and confiscating the weapon, and permanently removed both from the PA. Therefore, TVA has concluded that there was no significant reduction in the protection of the health and safety of the public.

A. Availability of systems or components that could have performed the same function as the components and systems that failed during the event

This event did not result in any system or component failures.

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B. For events that occurred when the reactor was shut down, availability of systems or components needed to shutdown the reactor and maintain safe shutdown conditions, remove residual heat, control the release of radioactive material, or mitigate the consequences of an accident

Safety system availability was not impacted by this event.

C. For failure that rendered a train of a safety system inoperable, estimate of the elapsed time from discovery of the failure until the train was returned to service

This event did not involve any equipment failure. Safety system operability was not impacted by this event.

VI. Corrective Actions

Corrective Actions are being managed by TVA's corrective action program under Condition Report (CR) 1268051.

A. Immediate Corrective Actions

The individual who introduced the firearm was removed from the PA, their badge was disabled, their access was revoked, and their personal vehicle searched for additional contraband. A post-event FFD test was attempted but the individual declined after numerous failed attempts to provide a sample.

1. The NSOs on-duty when the individual entered the PA were disqualified. The Search Lane where the individual entered was closed for Maintenance to inspect its x-ray machine, which was found to work as designed.
2. Two NSOs are now assigned to each lane's search monitor to view the items being processed through the x-ray machine, and any unidentifiable items are physically searched. A fleet-wide policy of random physical searches of personnel and packages has been implemented.
3. More than 800 lockers, cubicles, and other areas, constituting 50 to 60 percent of the PA, were searched for contraband. No additional contraband items or unauthorized items were found.

B. Corrective Actions to Prevent Recurrence or to reduce the probability of similar events occurring in the future

The corrective action to prevent recurrence is to revise task practical evaluation training and procedure SSI-7.6, Personnel Access Control, to include acceptance criteria for performing successful material searches.

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VII. Previous Similar Events at the Same Site

A search of the BFN Corrective Action Program identified no similar events have occurred at BFN.

VIII. Additional Information

There is no additional information.

IX. Commitments

There are no new commitments.